TITLE 32—NATIONAL DEFENSE

Chapter V—Department of the Army

Subchapter F—Personnel

PART 578—DECORATIONS, MEDALS, RIBBONS, AND SIMILAR DEVICES

APPLICATIONS FOR BRONZE STAR MEDAL

Section 578.2 (k) (5) is amended to read as follows:

§ 578.2 *To whom decorations awarded.* * * *

(k) *Bronze Star Medal.* * * *

(5) *Application for award.* Members of the Armed Forces of the United States, who have been awarded the Combat Infantryman Badge or Medical Badge by competent authority, or whose meritorious achievement or exemplary conduct in ground combat against the armed enemy at any time from December 7, 1941, through September 3, 1945, is otherwise confirmed in writing, may make application to The Adjutant General, Washington 25, D. C., for award of the Bronze Star Medal.

[C15, AR 600–45, Oct. 13, 1949] (40 Stat. 871, 41 Stat. 398, 56 Stat. 1052; 10 U. S. C. 1412)

[SEAL] EDWARD F. WITSELL,
Major General,
The Adjutant General.

[F. R. Doc. 49–8563; Filed, Oct. 25, 1949; 8:48 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

Subchapter D—Navigation Requirements for Certain Inland Waters

[CGFR 49–39]

PART 80—PILOT RULES FOR INLAND WATERS

SPECIAL DAY OR NIGHT SIGNALS

A notice regarding proposed changes in the inspection and navigation regulations was published in the FEDERAL REGISTER dated August 23, 1949 (14 F. R. 5230), and a public hearing was held by the Merchant Marine Council on September 27, 1949, at Washington, D. C.

The purpose of the amendments to the Pilot Rules is to add a new § 80.32a which will prescribe a day signal to be exhibited by fishing vessels or boats when operating on inland waters with nets, lines, or trawls out. This new regulation is based on a petition submitted to the Coast Guard. The new regulation will require the same day marks for fishing vessels as presently required by Article 9 (k) of the International Rules (33 U. S. C. 79 (k)).

By virtue of the authority vested in me as Commandant, United States Coast Guard, by section 2, 30 Stat. 102, as amended; 33 U. S. C. 157, the following amendments to the regulations are prescribed, which shall become effective ninety (90) days after date of publication of this document in the FEDERAL REGISTER:

1. Part 80 is amended by adding a new center heading and § 80.32a which shall immediately follow § 80.32, reading as follows:

SPECIAL DAY OR NIGHT SIGNALS

§ 80.32a *Day marks for fishing vessels with gear out.* All vessels or boats fishing with nets or lines or trawls, when under way, shall in daytime indicate their occupation to an approaching vessel by displaying a basket where it can best be seen. If vessels or boats at anchor have their gear out, they shall, on the approach of other vessels, show the same signal in the direction from the anchor back towards the nets or gear.

2. Part 80 is amended by deleting the center heading "Signals, Day or Night, at Anchor, or Under Way, United States Coast and Geodetic Survey Vessels" which immediately precedes § 80.33.

(Sec. 2, 30 Stat. 102, as amended; 33 U. S. C. 157)

Dated: October 20, 1949.

[SEAL] MERLIN O'NEILL,
Rear Admiral, U. S. Coast Guard,
Acting Commandant.

[F. R. Doc. 49–8570; Filed, Oct. 25, 1949; 8:57 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

PART 297—EXECUTIVE ORDERS AND RELATED PUBLIC LAND ORDERS REFERRED TO IN THIS CHAPTER

WITHDRAWAL OF LANDS CONTAINING HOT OR MEDICINAL SPRINGS

CROSS REFERENCE: For amendment of Public Land Order 399, which amended Executive Order 5389, see Public Land Order 614, *infra*. Executive Order 5389 is codified in part as § 297.9.

Appendix—Public Land Orders

[Public Land Order 614]

UNITED STATES AND ALASKA

AMENDMENT OF PUBLIC LAND ORDER 399, REVOKING E. O. 1324½, AND AMENDING E. O. 5389 WITHDRAWING PUBLIC LANDS CONTAINING HOT OR MEDICINAL SPRINGS

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The last sentence of the second paragraph of Public Land Order No. 399, of August 20, 1947, which revoked Executive Order No. 1324½, of March 28, 1911, and amended Executive Order No. 5389 of July 7, 1930, withdrawing certain public lands containing hot or medicinal springs, is hereby amended to read as follows:

Executive Order No. 5389 as hereby amended shall not affect lands in national forests, nor shall lands now outside of, or hereafter eliminated from, national forests be subject to the provisions of such order by reason of their proximity to any such springs in a national forest.

OSCAR L. CHAPMAN,
Acting Secretary of the Interior.

OCTOBER 19, 1949.

[F. R. Doc. 49–8546; Filed, Oct. 25, 1949; 8:46 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[S. O. 843]

PART 95—CAR SERVICE

RESTRICTIONS ON COAL-BURNING PASSENGER SERVICE LOCOMOTIVE MILEAGE

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 21st day of October A. D. 1949.

It appearing, that reserve stocks of railroad locomotive fuel coal have decreased; that some such reserves have reached a dangerously low level and are further decreasing; that the supply and movement of cars and trains and "car service" generally is impeded and interrupted by the lack of locomotive fuel coal; that the present production of bituminous coal is insufficient to relieve these conditions and adequately supply such fuel, and the Commission being of the opinion that an emergency exists requiring immediate action in all sections of the country: It is ordered, that:

§ 95.843 *Restrictions on coal-burning passenger service locomotive mileage*—(a) *Reduction in passenger locomotive mileage.* On and after the effective date of this order, any common carrier by railroad operating coal-burning steam locomotives and having 25 or less days supply of fuel coal for such locomotives and not having available a dependable source of supply of coal, shall reduce its coal-burning passenger locomotives miles to an amount of 25% less than it operated such coal-burning passenger locomotives on October 1, 1949.

(b) *Application.* (1) The provisions of this section shall apply to intrastate commerce, as well as interstate and foreign commerce.

(2) The provisions of this section shall apply to coal-burning passenger locomotive operation commencing on and after the effective date hereof.

(c) *Effective date.* This section shall become effective at 11:59 p. m., October 25, 1949.

(d) *Expiration date.* This section shall continue in effect until 11:59 p. m., December 25, 1949, unless otherwise modified, changed, suspended or annulled by order of the Commission.

(e) *Rules, regulations, and practices suspended.* The operation of all rules, regulations, and practices insofar as they conflict with the provisions of this section, is hereby suspended.

It is further ordered, that a copy of this order shall be served upon the State railroad regulatory bodies of each State, and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car

service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)–(15))

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 49-8573; Filed, Oct. 25, 1949; 8:55 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

Subchapter C—Management of Wildlife Conservation Areas

PART 31—PACIFIC REGION

SUBPART—MALHEUR NATIONAL WILDLIFE REFUGE, OREGON

HUNTING

Basis and purpose. On the basis of observations and reports of field representatives of the Fish and Wildlife Service and the Oregon State Game Commission, it has been determined that the area of the Malheur National Wildlife Refuge which has been open to hunting, is unsuited for public hunting purposes. Inasmuch as the Service and the Commission have determined that a reasonable amount of public hunting can be permitted on the Refuge, compatible with the management of the Refuge for the protection of waterfowl and other species of wildlife, an alternate area has been selected which is better adapted for public hunting, is more readily accessible, and more easily identifiable by hunters.

Since the following regulation liberalizes to a greater degree than it restricts, the notice and public rule making procedure required by the Administrative Procedure Act (60 Stat. 237, 5 U. S. C., 1001 et seq.) are hereby found to be impracticable and the effective date requirement of the Administrative Procedure Act does not apply.

Effective on the date of publication of this document in the FEDERAL REGISTER § 31.208 is revised to read as follows:

§ 31.208 *Area open to hunting.* All that area of land and water owned by the United States in Harney County, Oregon, situated in and abutting on the north side of Malheur Lake bounded and described as follows:

Beginning at corner No. 1, in the record meander line (known as the Neal survey line) of T. 25 S., R. 32½ E. (north of Malheur Lake), in the south boundary of fractional sec. 29, at the corner common to lots 1 and 2 of said fractional section; thence in Malheur Lake south approximately 316.50 chs., N. 64° 45′ E., approximately 314.00 chs., to the east side of the borrow pit on the east side of Cole Island Dike, northerly with the east side of said borrow pit with the meanders thereof approximately 197.00 chs., to the record meander line (known as the Neal survey line) of T. 25 S., R. 32½ E. (north of Malheur Lake), the corner common to fractional sections 23, 25, and 26 and section 24; thence within T. 25 S., R. 32½ E. (north of Malheur Lake), north 20.00 chs. to the south sixteenth corner common to said fractional secs. 23 and 24; in fractional sec. 23, west 20.00 chs., north 20.00 chs., west 20.00 chs., north 20.00 chs., west 40.00 chs. to the northwest corner of lot 6 in the line common to fractional secs. 22 and 23; south approximately 23.00 chs. to the said record meander line, the meander corner common to fractional secs. 22 and 23; southwesterly with the aforesaid record meander line along the south boundaries of fractional secs. 22 and 27, approximately 182.00 chs. to the corner common to fractional secs. 21, 22, 27, and 28; north 20.00 chs. to the south sixteenth corner common to said fractional secs. 21 and 22; in fractional sec. 21, west 20.00 chs., north 20.00 chs., west 20.00 chs., north 20.00 chs., east 40.00 chs., to the north sixteenth corner common to said fractional secs. 21 and 22; north 20.00 chs., to the corner common to secs. 15 and 16, and fractional secs. 21 and 22; west 60.00 chs. to the west sixteenth corner common to said sec. 16 and said fractional sec. 21; in fractional sec. 21, south approximately 35.00 chs. to the corner common to lots 1, 2, 9, and 10; southwesterly approximately 22.50 chs. to the corner common to said lots 1 and 10 and in the line common to fractional secs. 20 and 21; north approximately 3.50 chs. to the quarter corner common to said fractional secs. 20 and 21; in fractional sec. 20, west 40.00 chs., south 40.00 chs. to the quarter corner common to fractional secs. 20 and 29; west 20.00 chs. to the west sixteenth corner common to said fractional secs. 20 and 29; in fractional sec. 29, south approximately 12.50 chs. to the place of beginning.

(50 CFR 21.31, 13 F. R. 9350)

Dated: October 20, 1949.

M. C. JAMES, *Acting Director.*

[F. R. Doc. 49-8545; Filed, Oct. 25, 1949; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[43 CFR, Part 192]

MEANS OF EXPEDITING ISSUANCE OF NONCOMPETITIVE OIL AND GAS LEASES, PROPOSED NEW NONCOMPETITIVE OIL AND GAS OFFER AND LEASE FORM

NOTICE OF HEARING

Pursuant to the authority vested in the Secretary of the Interior by section 32 of the act of February 25, 1920 (41 Stat. 450, 30 U. S. C. sec. 189), a hearing will be held by C. Girard Davidson, Assistant Secretary of the Interior, on December 1, 1949, at 10:00 a. m., at the chamber of the House of Representatives, State Capitol, Denver, Colorado, to consider suitable means for expediting the issuance of noncompetitive oil and gas leases. There will be presented a proposed new noncompetitive oil and gas offer and lease form, amendment of 43 CFR 192.42–192.44, and proposed change in the leasing procedure, which are believed to offer a solution to the problem.

The purpose of the proposed new offer and lease form and the amendment to the regulations is to enable the Department to give quick service in the issuance of oil and gas leases with a minimum of effort on the part of both the applicant who offers to take a noncompetitive lease and the Department.

It is also proposed to change the procedure in the issuance of noncompetitive oil and gas leases on applications now pending by directing the issuing officer, in instances where a lease application is in conflict with a prior pending application as to part of the land, to issue leases forthwith as to the part not in conflict, and to suspend action as to the parts in conflict until action on the prior application is finally taken. At that time an additional lease will be issued for the part suspended or the application will be rejected as to that part, as the case may be. Tentative drafts of the proposed new offer and lease form and of the proposed regulations are attached as Appendix A. If the change of procedure, discussed above, is adopted, it will be effectuated by a Bureau of Land Management order.

Consideration will also be given to any other suggestions which may be presented as offering a means of expediting the issuance of noncompetitive oil and gas leases.

The hearing will be open to the attendance of all interested parties. Those desiring to be heard in person at such hearing should file notice thereof in the Office of the Bureau of Land Management, 341 New Customhouse, Denver, Colorado, not later than November 30, 1949. Written statements may be filed at the same office by any party so desiring on or prior to November 30, or with the Chairman at the hearing.

Following the hearing the Secretary of the Interior will, upon consideration of the complete record, determine whether the appropriate offer and lease form should be adopted and 43 CFR 192.42–192.44 be changed accordingly. Other sections of Part 192 will also have to be amended to conform to such amendments. Such forms and regulations, if adopted, will be duly published in the FEDERAL REGISTER. He will also direct the Bureau whether the proposed change in leasing procedure should be adopted.

Copies of the proposed forms and regulations may be obtained from the Bureau of Land Management, Washington, D. C., or any of the following of its field offices, or of the offices of the Oil and Gas Supervisors of the Geological Survey:

Region I, Swan Island Station, Portland, Oreg.

Region II, 100 Old Mint Building, Fifth and Mission Streets, San Francisco, Calif.